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CENTRAL CRIMINAL COURT, Sept. 14.

(Before Mr. Justice Day.)

William Gouldstone, 26, blacksmith, was placed upon his trial upon an indictment charging him with the wilful murder of his five children—Charles Gouldstone, Herbert Gouldstone, Frederick Gouldstone, and two male infants.

The prisoner pleaded "Not Guilty."

Mr. Poland and Mr. Montagu Williams conducted the prosecution for the Crown; Mr. Grain and Mr. Elliot were counsel for the defence.

The prisoner was first tried upon the indictment charging him with the wilful murder of his eldest child, Charles Gouldstone.

Mr. POLAND, in opening the case, said the prisoner, William Gouldstone, was charged in this indictment with the wilful murder of Charles Gouldstone, his son. Appearing there on behalf of the Director of Public Prosecutions, it was his duty to state the facts of this sad and melancholy case. The prisoner had been for five years in the service of a firm in Lower Thames-street. He had been living for about ten weeks at Walthamstow with his wife and three children—the eldest, the subject of the indictment, Charles, being three and-a-half years, Herbert two and-a-half years, and Frederick 16 months old. On the 1st August his wife, at the place where they were then living, was confined of twins. The prisoner was by all accounts a sober, hard-working man, and had been maintaining his wife and children by his daily labour. There was no doubt, receiving as he did about 25s. per week, that he regretted that his wife was confined of twins so as to add so seriously, as he thought, to the number of his children. Up to that time, the learned counsel repeated, the prisoner had been sober and industrious. On the day of the confinement and on the following night the landlady, for the first time, saw that he was somewhat the worse for drink. As he (Mr. Poland) gathered from the evidence, the prisoner continued at his work until the Friday before Bank Holiday, Monday, August 6th. According to the practice of the firm, the prisoner had received a present of 10s. on the Friday, and on the Saturday the ordinary beanfeast of the workmen in the employment of the firm took place. The prisoner did not appear to have joined his companions on that occasion. On the Monday following—Bank Holiday—the prisoner was, of course, not at work, neither did he go to his employment on Tuesday, 7th, or Wednesday, 8th August, although he did not remain at home on those days. On the 8th August he came home at somewhere about half-past 5 in the evening, his usual time for returning being half-past 7. When he came home, the two eldest children were playing in the kitchen, and in the bedroom on the same floor was his wife, the third child Frederick, and the two babies, which were being suckled by the mother. Mrs. Hamilton, a lodger who had kindly attended Mrs. Gouldstone during her confinement, was also in the room washing the children. The jury would have evidence that the prisoner, who was then apparently sober, took from the bedroom into the kitchen the child Frederick, and they would find that after going backwards and forwards into the room, he went into the kitchen, moved the perambulator, and placed a chair near the cistern. It would be proved beyond all question that the prisoner drowned the three eldest children in the cistern, and a piece of cord was subsequently found tied round the neck of one. Having thus destroyed the lives of these three children, the prisoner went into the bedroom where his wife was. Mrs. Hamilton, thinking he wanted to speak privately to his wife, left the room, leaving him alone with his wife and the two babies. The prisoner locked the door and Mrs. Hamilton then heard screams of "murder" coming from Mrs. Gouldstone, who called out that the prisoner was murdering her children. Mrs. Hamilton, in company with the landlady of the house, endeavoured to force the room door open, but they were unable to do so. The prisoner soon afterwards opened the door and said, "I have killed the children and I am happy now," and then he said to his wife "Your other three children are in the cistern." Mrs. Hamilton found that, although the two babies were not dead, there had been inflicted upon them very serious injuries with a hammer which was found lying in the room. The infants' skulls had been fractured, and on the following night they both died. Upon the prisoner making this statement Mrs. Hamilton went into the kitchen and there she found lying dead upon the floor the three elder children, the bodies being saturated with water; and evidently their death had been caused by drowning in the cistern. The act must have been done with great deliberation, as only 14 inches of water was in the cistern at the time. The prisoner said further to his wife, "All the children are dead now. I shall be hung, and you will be single. You wished them dead, and now they are." The police were sent for, and the wife, knowing that he was to be taken away, kissed him, and asked him what money he had about him. He gave her what he had, and he was then taken to the police station. When the police came they found him with his coat off and with his shirt sleeves tucked up. The prisoner said "Good evening, policeman, I have done it; now I am happy and ready for the rope." He repeated the statement to his wife that he had killed the children and that he should be hanged. While on the way to the police station he said to the officer who had him in charge, "When I took my money last week (referring to the previous Friday when he was paid) I thought of buying a revolver to do it with, but I altered my mind, as I thought it would make too much noise. I had a hard job with the two biggest, and the other little —— I soon settled him. I thought it was getting too hot with five kids within three and-a-half years, and I thought it was time to put a stop to it." When charged, the prisoner replied, "That is right, I am happy now. I did it like a man." After he had been placed in the cell, the prisoner spoke to the constable who was placed in charge of him, and said, "I have had an extra drop of drink to-day to accomplish the job. Five of them have gone to glory, and a good job too." He added that he was sorry for his wife, but the children would be better off in Heaven, if there was such a place, than leaving them to the mercy of the world. The prisoner further stated that he wished he had killed the little ones out of the way; he did not know whether he hit them once or twice; and he had had it preying on his mind for some time previously. At that time he was charged with the murder of the three elder children only, and with attempting to murder the two infants who were not then dead. The circumstances would have to be gone into, because it was important for the jury to know the conduct, manner, and demeanour of the prisoner at the time of the commission of the act. It was right that he (Mr. Poland) should call their attention to the real issues involved in the case. There was no doubt that the wilful killing of a human being was, by the law of England, murder, and it was for the person charged to show that he was not guilty of that crime. There was a further rule of law, and that was that every man was presumed by law to be of sound mind and responsible for his acts, and it was for the person charged to prove that he was not responsible for his actions or for the crime of murder. He (Mr. Poland) was bound to call the attention of the jury to these matters. Up to the time of the occurrence the prisoner was pursuing his ordinary calling, and whether he had been drinking at the time the prosecution were not able to prove, but there was his own statement to that effect. The learned counsel pointed out that the prisoner, according to his own statement, had considered the matter beforehand, and whether he should buy a revolver to commit the act, and he seemed at length to have come to the terrible determination to take the lives of his children, thinking that, instead of having the burden of maintaining them and leaving them to struggle in the world, he would take their lives. He preferred to take that course, knowing thoroughly well what he was about, and that, by the law of England, it was a crime to take human life, for he said, "I shall be hung, and I am ready for the rope." This expression indicated that he was conscious at the time that he was committing a crime against the law of the land. If he knew the nature and quality of the act he was committing, and that it was a crime, he was responsible to the law for that act. In all cases where human life had been sacrificed, it required the greatest care and attention at the hands of juries, for on the one hand the interest of the accused must be guarded, and on the other the interest of the public must not be lost sight of.

Witnesses were then called in support of the opening statement.

The first witness called was Mrs. Ada Hamilton, who, in examination by Mr. POLAND, said,—I live at Walthamstow, and am a monthly nurse. I knew the prisoner and his family. They were living at Walthamstow, and occupied two kitchens and a parlour. I attended Mrs. Gouldstone in her confinement on August 1, when she was confined of two male children. Up to that time the prisoner had attended regularly to his work. He went to his work on the two following days, Thursday and Friday, but not after. He seemed very strange, and on two occasions I saw him crying. I never saw him the worse for drink but once. That was on the Friday after the babies were born. On Wednesday, the 8th, I was in the bedroom attending to the prisoner's wife, when he came home about a quarter past 5. I said "You did frighten me. I wondered who it was." His usual time for coming home was a quarter past 7 o'clock. He remained in the kitchen a few minutes, and then came into the bedroom. His wife asked him why he had come home so early, and he said that he came while the manager was at dinner. In reply to his wife he said that he had not told the manager that he had twins at home. He took the little boy Frederick out of the bed and went into the kitchen with him. At that time his manner was quiet. I went on washing the babies, and then, on going into the kitchen to fetch something, I saw the prisoner sitting on the fire-guard with a piece of string in his hand. I went into the bedroom again, and was away about 10 minutes altogether. I left the three children playing in the kitchen. When I went back the prisoner was still sitting on the fire-guard, but I noticed that the perambulator, which had been standing by the side of the cistern, had been moved, and that a chair was placed there. I went back into the bedroom and remained about 20 minutes. The prisoner then came and looked into the bedroom, and I told him that he might come in. He said something and then went away. As I thought he wished to speak to his wife I went downstairs. I heard the kitchen door open and the prisoner go into the bedroom. Just as I got into the yard I heard the prisoner's wife scream "Murder." I went back and found the door locked. I could not force the door. Mrs. Clarke came, and I called out to the prisoner, but did not hear him answer. He opened the door in about three minutes. I said "Oh! Mr. Gouldstone, what have you done, you wicked man?" He said "No, I am a happy man." With that I went into the bedroom, and he passed me going into the kitchen. I found both the twins alive, but bleeding from the mouth and nose. As I could see they were dying I covered them over so that the mother could not see them, and sent for a doctor. In consequence of what the mother said I went into the kitchen, where I saw the prisoner with the youngest of the other three children in his arms, apparently dead. He laid it on the floor. As I turned round I found the wife coming into the kitchen, and went back with her into the bedroom. On again going into the kitchen a quarter of an hour afterwards I saw all three children on the floor, side by side, wet and dead. The prisoner was there. A policeman came, and the prisoner was brought back into the bedroom. He said to his wife "All your children are dead. I shall be hanged, and you will be single again. You wished they were dead, and now you have got your wish." He kissed his wife, gave her some money, and was then taken away. Afterwards I found a hammer on the floor. One of the infants died half an hour later, and the other at 2 o'clock the following morning.

In cross-examination by Mr. GRAIN, witness said.—When I first went into the kitchen the three children were sitting on the floor playing with each other. The prisoner was looking at his hands, in which he held a piece of string. The children seemed quite happy. When I left the bedroom, just before the prisoner locked the door, the twins were lying by the side of his wife. Both were on one side. The prisoner was very fond of his wife and children, and seemed very happy with them. He used to play with and amuse the children on Sundays when he was at home. After the twins were born he seemed very strange. He used to sit still, and when spoken to would not answer. I never heard of them being in want of money. The prisoner was always a sober and well conducted man, and very punctual in returning home at night.

Mrs. Emma Clarke, the landlady of the house, gave corroborative evidence. The prisoner was a quiet, steady man, and always seemed fond of his children, but he appeared strange after the confinement. She never saw him the worse for drink.

Police-constable William Cheeseman spoke to being called to the house after the occurrence, and seeing the three children lying dead upon the kitchen floor. The witness continued.—The prisoner was in his shirt sleeves, and said, "Good evening, policeman. I have done it now. I am ready for the rope." I cautioned him as to what he said. I allowed him to see his wife, who said to him, "Oh! you wicked man, what have you done?" He replied, "I have killed all your children. Now you will be single again and I shall be hanged." His wife asked if he had any money, and he said, "Yes a little," and gave her some. He kissed her, and I took him to the station. On the way there he said to me, "When I took my money last week I thought of buying a revolver to do it with, but I altered my mind, as I thought it would make too much noise. I had a hard job with the two biggest. I thought it was getting too hot to have five kids in about three and a half years, and thought I would put a stop to it." At the station he said, "I have done it like a man." When the charge was read over the prisoner remarked "Quite right, Sir." The prisoner appeared quite sober, and to understand all that was said to him.

Cross-examined by Mr. Grain.—It was 20 minutes to 6 in the evening when I took him in custody. He seemed excited, and when he kissed his wife he said "Good bye."

Inspector Folkard gave corroborative evidence. In answer to the charge at the police station, prisoner said, "Quite right, Sir," and asked what condition his wife was in. The prisoner seemed slightly excited when brought in. During the night the two younger children died, and on the following morning the prisoner was charged with their murder also. The accused replied, "Yes, Sir, the other two are dead then?" The top of the cistern was about 6ft. from the floor.

Replying to Mr. Grain, witness said there was a space of about 10in. between the top of the cistern and the ceiling. It ran the whole length of the room, and there was about 14in. of water in it.

Police-constable Henry Wheatley, who had charge of the prisoner during the first night he was locked up, deposed that at about a quarter to 7 the prisoner said to him, "I have had an extra drop to drink to accomplish the job. There are five of them gone to glory, and a good job too." Later on he said, "I am sorry for my wife and parents, but the children will be better off in heaven, if there is such a place. It is better than leaving them to the mercy of the world." Still later he said, "I wish I had killed the little ones out of the way. I do not know if I hit them once or twice. I have had this playing on my mind for a long time."

Mr. Gould, divisional surgeon of police at Leyton, gave evidence as to being called at 6 o'clock on the evening of the 8th of August to the prisoner's house. He found lying on a bed two children, both of whom had fractured skulls, and they were in a dying condition. In the kitchen he saw three children lying dead, their clothes being saturated with water. On the neck of the eldest was a mark as if a piece of string had been tied round it. He called again at 8 o'clock and found one of the twins dead, and the other died the following morning. The three eldest children died from suffocation by drowning, and the infants from injury to the skull and brain.

Other evidence having been given as to the finding of the hammer in the bed room and a piece of string tied round the neck of the eldest child,

The case for the prosecution was closed.

Mr. GRAIN, in opening the case for the defence, observed that they were assembled there that day engaged in a very solemn and awful inquiry. The law required that all cases brought before a tribunal of justice should be approached in a calm and judicial state of mind, and he should ask the jury to approach the consideration of the present case with extra calmness and impartiality. He begged them to put aside any prejudice and sympathy there might be in their minds in considering the defence which was about to be placed before the jury on behalf of the accused, and he felt sure that justice would be done in the matter. He did not propose to occupy much of their time in opening the case for the prisoner, and he might tell them at once that the defence which would be put forward on behalf of the unhappy man was that when he committed the act with which he was charged he was not in a sane state of mind, and consequently not responsible for his actions. He submitted that the prisoner, according to the evidence of the prosecution alone, was not in a state of mind to know the nature of the act he was committing, for it otherwise would have been impossible that the kind and affectionate father, the good husband, the well-conducted and meritorious man, in the short space of time alleged should have murdered in so barbarous a manner his five children, three of whom had been playing at his knee, the two infants being suckled at their mother's breast. He (Mr. Grain) should call before them witness after witness who would prove that in both branches of the prisoner's family there was undoubtedly hereditary insanity. The accused's mother at the present time was a lunatic, and although she was not confined in an asylum, yet she was undoubtedly insane, and at the time of his birth she was not in her right mind. His aunt on his mother's side was also not in a right state of mind. The insanity was not confined to the maternal side alone. He should be able to prove that on the paternal side there was also insanity in the family. His second cousin on his father's side died a lunatic, and other members of the family on the same side had been of unsound mind. He should call Dr. Savage, the principal physician at Bethlehem Hospital, and he would say that having examined the prisoner, and heard the evidence of insanity in both branches of the family, he was of opinion that he had had a hereditary tendency to a weak mind. He submitted that the prisoner's mind became unhinged before he committed the act, and that unless it had become so it would have been impossible for him to have committed a deed of so awful a character.

A number of witnesses were then called in support of the defence.

Some delay occurred in consequence of the witnesses not being in readiness when called, and

MR. JUSTICE DAY said he was surprised to find in the Central Criminal Court of this great country the arrangements were so exceedingly bad that they would not be allowed in any other large town. Nothing could be worse than the arrangements made for the witnesses, juries, and other persons having business at the Court, and he repeated that he was surprised to find such a state of things in existence.

Thomas Gouldstone, examined by Mr. GRAIN for the defence, said,—I am the father of the prisoner at the bar. His mother is alive, and is very bad in her mind now, and has been for many years. A woman has to be employed to look after her. Once she attempted to strangle herself, and once I took a knife away from her. About eight weeks ago she threatened to take her life. When the prisoner was born she was in a bad state of mind. My wife's sister is also not right in her mind. William Gouldstone, a second cousin of mine, died in a madhouse, and my father's sister wore a strait jacket for some years.

Cross-examined by Mr. POLAND.—All my children have been quite right except the prisoner. My wife has never been in an asylum. She is a sober woman. When I saw my son about eight weeks ago he seemed queer.

Robert Gouldstone, the eldest son of the last witness, proved that his mother had threatened to make an end of herself, and the family had had to look after her and keep knives out of her way. The prisoner was ruptured some six or seven years ago, and about this time frequently complained of pains in his head.

Emily Gouldstone, sister of the prisoner, deposed that through troubles in business her mother had several times attempted to commit suicide. She last saw the prisoner about two months since at her sister's house.

William Graves, foreman at the Falkirk Ironworks, Thames-street, where the prisoner was employed, deposed that he had known him since childhood. He had always known him to live happily with his wife and family. On the 2d of August, after his wife's confinement, witness noticed a change in his manner, and spoke to him about it. The accused complained of pains in the head. Witness paid him his wages the next day, and gave him a customary present of 10s.

A number of fellow workmen also gave evidence on the prisoner's behalf. On several occasions the prisoner told a man named Cakebread that he would throw himself under a train if he thought he would be killed instantaneously and without pain, and at another time he said that he would throw himself down the lift if he could do so without torture. He also stated to other men that he wished he was dead, and he complained of pains in his head arising from the rupture. He also expressed a wish that someone would knock him on the head. He bore the character of a quiet and steady man, and if anything was rather morose.

Mr. Kennard, one of the prisoner's employers, stated that he knew nothing of him personally, but the general feeling among his fellow workmen was that he was insane.

Charles Gouldstone, a cousin of the prisoner's father, deposed that his son (the prisoner's second cousin) had been confined in a lunatic asylum for 16 months from 1860.

Dr. Sunderland, a medical man practising at Thaxted, in Essex, spoke to having attended the prisoner's mother, who was of unsound mind, for eight years. The form of insanity she was suffering from was despondency. He had also attended Mrs. Andrews, her sister, who suffered from the same malady.

Replying to Mr. POLAND, witness said that neither the mother nor her sister had been certified as insane.

Dr. Savage, the principal physician of the Bethlehem Hospital, deposed that he had examined the prisoner, and from the examination alone he considered him rather weak in his mind, as was evidenced by slowness of appreciation of questions concerning the crime of which he was accused. When speaking about it he seemed not to appreciate in any way the gravity of the charge. Beyond that, from his personal examination witness could say nothing. He had heard the evidence of the prisoner being a fond husband and father and a quiet and steady workman, and details of the case, and he should think that his mind was unsound at the time the act was committed. He had heard his fellow workmen describe his wishing to be dead, and of his wanting to fall down the lift, and witness was of opinion that such symptoms were frequently present with persons of unsound mind.

The witness was about to be asked what conclusion he arrived at after hearing the evidence of insanity on both the paternal and maternal side of the family, when

MR. JUSTICE DAY said it seemed to him that that was the question the jury had to decide. A doctor was entitled to give his medical evidence, but not to draw a conclusion which the jury had to draw.

Dr. Savage, in answer to further questions, said the insanity on the mother's side being proved, he thought there would be a great tendency for the prisoner to become insane, and that if insanity, even in a remote degree, was proved on the male side the liability to insanity in the offspring would be increased to a considerable extent. At Bethlehem the last patient who died without being removed to Broadmoor was a woman who had killed her whole family.

Replying to Mr. POLAND, witness said he examined the prisoner on Thursday for between a quarter and half an hour. He was called by the prisoner's solicitor, and he knew he had to examine him as to the state of his mind. From his conversation alone there was nothing to show that he was otherwise than a sane man. From what witness saw of him yesterday he would not certify the prisoner to be a lunatic, and he would say that he was not actively suffering from any form of mental disease that he knew of. He could not, therefore, certify that he was a lunatic. His conversation with witness was that of a rational man, and he should say the prisoner knew that the penalty awarded by law for the crime of murder was death. When he said he thought the prisoner was of unsound mind at the time of the commission of the act he formed the opinion from what he heard in court and from his examination of him. He thought he knew the penalty of what he was doing at the time, and that he had killed the children knowing that the penalty was death.

That concluded the evidence for the defence, and

Mr. GRAIN then proceeded to sum up the case for the defence. The history of it was short and simple, but heart-rending and awful. A young man, well conducted, was married five years ago, and in that time had gained the esteem of his employers, the confidence of his fellow-workmen, and the love of his family. Under these circumstances, it seemed a matter of impossibility that a sane man could have committed the terrible crime. There was no evidence of want, but, on the contrary, every sign of those small comforts that people in their sphere of life might look for. There had been no threat of murdering the children, though of taking his own life. The learned counsel went at detail through the evidence, and asked the jury if they must not come to the conclusion that this was a sudden visitation of Providence, unhinging a brain, either from hereditary madness, bad health, or acute pain. After knowing what sort of man the prisoner had been, he asked them to say that on the evidence for the prosecution alone they would feel they were satisfying the ends of justice, the protection of the public, and the protection of human life by finding that when he committed these acts for which he was being tried for his life he was of unsound mind. Coming to the question of the evidence for the defence, he asked the jury to consider everything carefully, and say whether they could have any reasonable doubt that on April 8 the prisoner was of unsound mind. Let them deal with the matter as reasonable men. When they retired, he besought them each individually to turn over the whole of the evidence, to consider carefully everything that had been urged, and give their verdict conscientiously. They had an awful issue to try, but whatever their verdict was, he believed it would be their earnest effort to judge righteously between the Crown and the prisoner at the bar, who was now being tried for his life.

Mr. POLAND, in replying for the prosecution, pointed out that the question the jury had to decide was whether at the time he committed the act, the prisoner knew what he was about, and that it was against the law. The learned counsel pointed out that the prisoner had never shown any signs of insanity previous to the day of the occurrence. So far from the evidence showing that he was insane at the time it rather proved that the crime was committed with coolness and deliberation. The question they had to determine was whether the prisoner really knew what he was doing, and if they did that, he could hardly conceive the verdict being anything but adverse to the prisoner. Because this man had committed this series of acts, if they were to consider the brutality evidence of insanity, it would be a very dangerous precedent. The jury must face the whole facts of the evidence, and if they were satisfied that the prisoner was responsible for the deed, then, but then alone, he would ask them to give their verdict for the Crown.

MR. JUSTICE DAY then proceeded to sum up on the whole case. The prisoner, he said, was indicted for the wilful murder of his five children, and that he killed them was beyond all question. The question for the jury to determine was whether he killed them in such circumstances as would amount to the crime of wilful murder. The killing of a human being was presumptive murder; but the circumstances in which it took place might show that it did not amount to that crime, but that it amounted merely to manslaughter, justifiable homicide, or homicide by misadventure, or the act of not a reasonable being. The only question for the jury was whether this was the act of a reasonable being in the sense he would explain to them. The matter of law was one unquestionably for him, and the jury were bound to take his instructions with regard to the law, in doing which they would be incurring no responsibility upon themselves. He told them, as a matter of law, that if the prisoner at the time he killed the children knew the nature and quality of the act he was committing and knew that he was doing wrong, then he was guilty of wilful murder. The nature and quality of the act meant that the man knew what it was that he was doing—that was to say, that he knew he was killing a fellow creature. He repeated that if a man killed a fellow creature knowing at the time he was doing wrong then he was guilty of wilful murder. The only question therefore for them to determine was whether the prisoner knew the nature and quality of the act he was committing, and whether he knew it was wrong. The jury were bound to give their verdict according to the evidence, and to administer justice according to law. The circumstances were very sad, and a painful duty rested upon the jury and all concerned in the trial. However painful that duty was they must not shrink from the performance of their duties. The only defence, and the one which had been set up on behalf of the prisoner with the utmost skill, directness, and ability by his learned counsel, Mr. Grain, was that the accused at the time he committed the act was of unsound mind, and therefore not responsible for his actions. His Lordship then carefully reviewed the evidence which had been given on the part of the defence in order to prove insanity, and remarked that previous to the 8th of August no one would have said the prisoner was a man of unsound mind, and referring to the statement made by the accused, he observed that it was difficult to say that at the time he did the deed he did not know what he was doing. The matter, however, was solely one for the jury. In conclusion, his Lordship urged them to approach the case with a spirit of calmness and impartiality, and they must not be influenced by the thought of the consequences, but must give their verdict according to their oaths and their consciences. He had had handed to him by the learned counsel for the prosecution—of the existence of which he was not previously aware, as no notice had been given to him—an Act of Parliament passed towards the end of last month, which might affect the form of their verdict. The former and logical law was simply this:—Wilful murder involved malice aforethought, and a person of unsound mind was incapable of forming an intention or malice aforethought, and therefore incapable of murder. In such circumstances a jury found a person "Not Guilty on the ground of insanity." The law, however, had been altered, and if the jury found that the prisoner was insane at the time he committed the act they would have to return a special verdict that he committed the act, but was insane at the time. If, on the other hand, they found that he knew the nature and quality of the act when he killed his children, and that he was not of unsound mind, they must find him guilty, and the new Act would not affect that verdict.

The jury retired to consider their verdict, and, after an absence of about a quarter of an hour, returned into Court, finding the prisoner *Guilty*.

Being asked in the usual course whether he had anything to say why sentence of death should not be passed upon him, the prisoner replied in the negative.

Silence was then formally proclaimed, and

MR. JUSTICE DAY, having assumed the black cap, proceeded to pass sentence of death. He said:—William Gouldstone, you have been convicted upon overwhelming evidence of the crime of wilful murder. The jury could not consistently with their duty have found any other verdict in your case. It is my invariable rule never to comment upon the facts of a case where it is my painful duty to sentence a prisoner to such a painful death as that which awaits you. I wish to say nothing to add to your sufferings, but merely to beg of you, as a fellow man, to make good use of the short time which is allowed you by law to prepare for your last day. Seek mercy where mercy alone is certain to be found. Seek it at the feet of your Redeemer. I beseech you make good use of your time. Every facility and every help will be afforded you. Do, I beseech you again, make use of that short time which is allowed you. His Lordship then passed sentence of death in the usual manner, and ordered the prisoner to be handed over to the Sheriff of Essex to carry out the sentence of the law.

The prisoner, who had preserved a calm and undisturbed demeanour throughout the trial, was then removed.

William Haycraft, butcher, who yesterday pleaded "Guilty" to the manslaughter of his wife by striking her with a boot, was brought up for judgment.

MR. JUSTICE DAY commented upon the gravity of the offence, and, taking into consideration the fact that the prisoner had received some provocation, he sentenced him to 18 months' hard labour.

George Graham, 24, printer, was *Convicted* of highway robbery with violence and sentenced to five years' penal servitude.

Mr. Henry Kisch was counsel for the prosecution; Mr. Purcell defended.

(Before the COMMON SERJEANT.)

William Mann, 26, draper, and David Pugh, 28, umbrella maker, were indicted for obtaining money by false pretences.

Mr. Poland and Mr. Montagu Williams appeared for the Public Prosecutor; Mr. Geoghegan and Mr. Warburton defended Pugh.

Miss Ellen Brent, of Bryanston-street, noticing an advertisement for a lady partner in a light, profitable business, replied, and the prisoner Mann then called upon her. Upon hearing that it was a drapery business, Miss Brent said this would not suit her friend. Subsequently Mann again called, and said that a lady at Hastings with £900 was about to join him in the business, and was coming up to arrange with his landlord. He said the business could

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